

STAGES OF CASE (CIVIL & CRIMINAL)



STAGES OF CRIMINAL CASE

- Pre Trial Stage
- Trial Stage
- Post Trial Stage



CONT.

Pre Trial Stage

- ✓ FIR in cognizable offence; (Section 154 of CrPC)
- ✓ Complain in cognizable & non-cognizable offence (Sections 154 & 155 of CrPC)
- ✓ Investigation (Chapter XIV of CrPC)
- ✓ Charge Sheet or Final Report (Section 173 of CrPC)
- ✓ Naraji Petition
- ✓ Taking Cognizance (Section 190 of CrPC)
- ✓ Issuing Process (Section 204 of CrPC)
- ✓ Transfer of the Case (Section 192 of CrPC)



CONT.

Trial Stage

- ✓ Framing of Charge (Sections 242, 265D of CrPC)
- ✓ Plea & Conviction
- ✓ Hearing/Taking Evidence/Examination Etc.
- ✓ Judgment



CONT.

Trail By Magistrate:

- ✓ Section 241: Procedure in Cases.
- ✓ Section 241A: When accused shall be discharged.
- ✓ Section 242: Charge to be framed.
- ✓ Section 243: Conviction on admission of truth of accusation
- ✓ Section 244: Procedure when no such admission is made.
- ✓ Section 245: Acquittal or Sentence
- ✓ Section 247: Non-appearance of Complainant
- ✓ Section 248: Withdrawal of Complaint
- ✓ Section 249: Power to stop proceedings when no complainant.



CONT.

Trail by Court of Session:

- Section 265A: Trail to be conducted by Public Prosecutor
- Section 265B: Opening Case for Prosecution
- Section 265C: Discharge
- Section 265D: Framing Charge
- Section 265E: Conviction of Plea of Guilty
- Section 265F: Date for prosecution evidence
- Section 265G: Evidence of Prosecution
- Section 265H: Acquittal
- Section 265I: Entering upon Defence
- Section 265J: Arguments
- Section 265K: Judgment of Acquittal or Conviction



CONT.

Post Trail Stage

- ✓ Execution of Sentence (Chapter XXVIII)



STAGES OF CIVIL SUIT

- (1) Pre-trial stage.
- (2) Trial Stage.
- (3) Post-trial stage.



CONT.

Pre-trial stage

- Institution of Suits (Section 26, Order II & Order VII of CPC)
- Issuance & service of Summon (Section 27, Order V of CPC)
- The appearance of the parties/Ex-party Decree (Order II of CPC)
- Filing of the written statement by the defendant (Order VIII of CPC)
- Production of documents and Examination of parties (Order X of CPC)
- Framing of issues (Order XIV of CPC)



CONT.

Trial Stage

- ✓ Hearing of the Suit
- ✓ Argument
- ✓ Judgement & Decree (Order XX)



CONT.

Post Trial Stage

Execution of Decrees and Orders (Order XXI of the CPC)











